

Service of the Subpoena: The Deposition Subpoena for Production of Business Records to Brett Leonard is attached to the Motion as Exhibit C. The proof of service is blank. The Declaration of Nathan Jackson, an attorney representing the City of Redding, states that Mr. Leonard agreed to email service of the subpoena, and the subpoena was served via email at Mr. Leonard's RPD work email address. (Decl. Jackson ¶ 4-5.) This is not sufficient proof of service. A Deposition Subpoena must be personally served. CCP § 2020.220. Counsel's representation that a nonparty agreed to email service of a subpoena at a work email address – where he does not currently work, is not sufficient to satisfy the notice requirement.

Defendant's Motion to Compel Compliance with Nonparty Subpoena is **DENIED**. A proposed order has been lodged and will be modified.

9:00 a.m. Review Hearings

B.C. VS. MOCK

Case Number: 22CV-0201088

This matter is on calendar for review to vacate the existing September 3, 2025 Court Trial and to reset a new Court Trial date after Defendant's criminal trial. The parties are ordered to appear today to vacate and reset the trial date.

CAPITAL ONE, N.A. VS. GRAVES

Case Number: 24CVG-01354

This matter is on calendar for review regarding status of the case. The matter is not at issue. This action was filed September 16, 2024. No proof of service of summons has been filed. An OSC re Sanctions is set for hearing today at 8:30 a.m. Failure to appear today will result in the issuance of an Order to Show Cause re Dismissal.

LVNV FUNDING LLC VS. PADRON

Case Number: 24CVG-01871

This matter is on calendar for review regarding status of conditional settlement. A Conditional Notice of Settlement of Entire Case was filed February 6, 2025. The notice sets forth that the settlement is conditional on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of settlement, and that a request for dismissal will be filed no later than February 7, 2026. Due to limited court budgets and reduced court staffing, the Court does not have staffing to monitor a case to assure dismissal and closure of the court file. The parties are directed to resolve the case in a way which results in a conditional dismissal; i.e., a stipulation that the dismissal may be set aside and judgment entered if there is a default in completing the terms of the settlement. This matter is continued to **Monday, September 15, 2025, at 9:00 a.m. in Department 64** for review regarding conditional dismissal. No appearance is necessary on today's calendar.

RIVERA, ET AL. VS. NISSAN NORTH AMERICA, INC.

Case Number: 24CV-0205714

This matter is on calendar for status and resetting of the trial date. The Court vacated the July 8, 2025 trial date on its own motion due to unavailability of a courtroom. The Court designates this matter as a plan II case and intends to set the matter for trial no later than February 10, 2026.

Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

SEIGMUND VS. MARSHALL

Case Number: 23CV-0203641

This matter is on calendar for review regarding status of the Statement of Decision. Pursuant to CRC 3.1590(c)(1), the Court issued a Proposed Statement of Decision on June 6, 2025. The clerk mailed the Proposed Statement of Decision to both parties on June 9, 2025. Defendant timely filed Objections to the Proposed Statement of Decision on June 24, 2025. Plaintiff responded to Defendant's Objections on July 9, 2025.

This matter was tried, and the Statement of Decision was issued, by Judge Baker, who has since retired. Judge Baker will be returning as an assigned Judge, and this matter will be set for hearing before him on the next available date, which is **Friday, August 22, 2025, at 1:30 p.m. in Department 64.** No appearance is necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$73,375.00 U.S. CURRENCY

Case Number: 25CV-0207207

This matter is on calendar for review regarding status. The People of the State of California filed a Petition for Forfeiture in Rem on March 7, 2025. No claim opposing forfeiture has been filed. At the most recent hearing, Deputy DA Gohn requested a continuance to file a Request for Default. No Request for Default has been filed. An appearance is necessary on today's calendar to provide a status.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$17,038.22 U.S. CURRENCY

Case Number: 24CV-0204451

This matter is on calendar for status. Claimant Ryan Montgomery filed a Claim Opposing Forfeiture on March 6, 2024. The People of the State of California filed a Petition for Forfeiture on March 11, 2024. At the most recent review hearing on June 16, 2025, Counsel informed the Court that the underlying criminal matter has resolved and requested a continuance to permit settlement discussions. No status report has been filed. An appearance is necessary on today's calendar to provide a status.

ZARIFIAN VS. GENERAL MOTORS LLC, ET AL.

Case Number: 24CV-0205004

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Conditional Settlement was filed on October 26, 2015 which indicates that the case would be dismissed no later than May 30, 2025. No dismissal is on file. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

WILSON VS. FASOLI

Case Number: 23CV-0201520

This matter is on calendar for trial setting. The Court designates this matter as exempt from the case management time standards. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.